

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure and Limited Access Agreement ("Agreement") is made and entered into as of the date of last signature below (the "Effective Date") by and between:

PlaneEnglish, a company registered in the state of Delaware with its principal place of business at 1281 Win Hentschel Blvd, West Lafayette, IN ("Disclosing Party"), and

[Receiving Party's Name], a company/individual with a principal place of business at [Receiving Party's Address] ("Receiving Party").

1. PURPOSE

The Disclosing Party owns and operates a website ("Website") and wishes to allow the Receiving Party temporary access to its backend for the sole purpose of evaluating the Website and providing a cost estimate for services ("Purpose"). The Receiving Party agrees to use the access solely for this Purpose and to maintain confidentiality regarding all disclosed information.

2. CONFIDENTIAL INFORMATION

2.1. "Confidential Information" includes, but is not limited to, the Website's source code, databases, architecture, user data, security protocols, proprietary business processes, financial information, and any other non-public data accessed or provided.

2.2. Confidential Information shall not include information that:

- (a) is or becomes publicly available through no breach of this Agreement;
- (b) is lawfully received from a third party without confidentiality obligations;
- (c) is independently developed by the Receiving Party without reference to the Disclosing Party's Confidential Information.

3. RESTRICTIONS ON USE AND DISCLOSURE

3.1. The Receiving Party shall:

- (a) Not disclose, copy, or distribute the Confidential Information to any third party without prior written consent;
- (b) Not use the Confidential Information for any purpose other than the Purpose;
- (c) Not modify, alter, delete, or otherwise tamper with any part of the Website without prior authorization;
- (d) Implement reasonable security measures to prevent unauthorized access or misuse of the Confidential Information.

4. ACCESS LIMITATIONS AND RESPONSIBILITIES

4.1. The Disclosing Party will provide the Receiving Party with limited access credentials. The Receiving Party shall not:

- (a) Create new accounts, delete accounts, or change user permissions;
- (b) Install, remove, or modify software, plugins, or configurations;
- (c) Copy, download, or transfer any code or data without written permission;
- (d) Introduce any harmful code, virus, or vulnerability to the Website.

4.2. The Receiving Party shall promptly notify the Disclosing Party of any security breaches, accidental modifications, or data losses encountered during access.

5. TERM AND TERMINATION

5.1. This Agreement shall remain in effect from the Effective Date until the earlier of:

- (a) Completion of the Purpose;
- (b) Termination by either party with written notice;
- (c) Breach of any terms, in which case the Disclosing Party may terminate access immediately.

5.2. Upon termination, the Receiving Party shall:

- (a) Cease all access and return or destroy any Confidential Information;
- (b) Confirm in writing that no Confidential Information has been retained in any form.

6. LIABILITY AND INDEMNIFICATION

6.1. The Receiving Party shall be liable for any unauthorized disclosure, damage, or disruption caused by its access and shall indemnify and hold harmless the Disclosing Party from any resulting claims, damages, or losses.

6.2. The Disclosing Party provides access "as is" without warranties and shall not be liable for any losses incurred by the Receiving Party.

7. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of [Your State/Country]. Any disputes shall be resolved through binding arbitration in [Your Jurisdiction].

8. GENERAL PROVISIONS

8.1. **No Transfer of Ownership:** This Agreement does not grant the Receiving Party any ownership or rights in the Website, its content, or any related intellectual property.

8.2. **Entire Agreement:** This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements or understandings.

8.3. **Severability:** If any provision is found to be invalid, the remaining provisions shall continue in effect.

8.4. **Amendments:** Any amendments must be made in writing and signed by both parties.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Receiving Party: Jackson Ingenito

Signature: Jackson Ingenito

Name: Jackson Ingenito

Title: Website Developer / Marketer

Date: 4/4/25

Disclosing Party: PlaneEnglish, LLC

Signature: _____

Name: Muharrem Mane

Title: CEO

Date: 04/04/2025